

Carter v. Officer Blake - Memorandum Opinion and Order

Memorandum Opinion and Order in Carter v. Officer Blake. Procedural posture: District court denied qualified immunity at summary judgment after finding disputed facts about a traffic-stop seizure. Record material: The district court denied qualified immunity on excessive-force and unlawful-seizure theories. Issue: Clearly established law. Standard of review: de novo. Record excerpt: Plaintiff deposition excerpt. Plaintiff testified that he complied with commands before being pulled from the vehicle and handcuffed tightly. Nature of suit: Civil Rights - Section 1983. Lower tribunal: U.S. District Court for the Middle District of North Carolina.